plaintiff knows or ought to know that the defendant committed some act or omission that caused the loss or damage.

36 **And what is meant by "knows" is that the plaintiff has the evidentiary basis to believe that the defendant did an act or made an omission that caused a loss** for which a court proceeding is appropriate to obtain a remedy — the basis of a plausible inference of liability, in the words of Moldaver J. Of course, at trial, it may turn out that the defendant was not responsible for the loss, either because they owed no duty of care, they met the standard of care, or they did not commit the act or omission that was alleged.

[emphasis added]

31. The example of the car accident discussed above is helpful in this case. In that example, the plaintiff did not need to know the details of how or why the defendant's car struck theirs, only that the defendant's car hit their car, which is the source of the plausible inference of liability. The Ontario Court of Appeal also emphasised in *Gordon* that "knowledge" does not mean that the claimant must be sure of the defendant's liability; rather, the claimant must only be in possession of the material facts from which plausible inference of liability can be drawn.

32. The Nova Scotia Court of Appeal[23] cited the following passages from an Ontario Superior Court of Justice[24] decision approvingly, as follows:

26 The comments on discoverability in the context of a summary judgment application in *Jack v. Canada (Attorney General)*, [2004] O.J. No. 3294 (Ont. S.C.J.) are instructive:

[...]

83 The rule of reasonable discoverability is to ensure that the plaintiffs have sufficient awareness of the facts to be able to bring an action. **The suggestion that a plaintiff requires a "thorough understanding" of such facts even after the action is brought, sets the bar too high. Similarly, to say that a plaintiff has to know the precise cause of her injuries before the limitation period started to run would also place the bar too high.** ***K.L.B. v. British* Columbia** [2003] 2 S.C.R. 403 (S.C.C.) at para. 55-57; *McSween v. Louis* (2000), 187 D.L.R. (4th) 446 at p. 459 (Ont. C.A).

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23 *Milbury v Nova Scotia (Attorney General)*, 2007 NSCA 52, para 26.

24 *Jack v Canada (Attorney General)*, [2004] OJ No 3294, paras 83-84.